25STCV26366 25STCV26366

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-27

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Case Number: 25STCV26366 Hearing Date: July 27, 2026 Dept: 730

Superior Court of

California

County of Los Angeles

Department

730

7000

E. SLAUSON AVENUE COMPANY,

Plaintiff,

vs.

LADA

JEANSWEAR, INC., et al.,

Defendants.

Case No.:

25STCV26366

Hearing

Date:

July 27,

2026

ORDER
sustaining DEMURRER TO COMPLAINT

I. BACKGROUND

Plaintiff
7000 E. Slauson Avenue Company (“Slauson”) entered into written lease with Defendant LADA Jeanswear, Inc. (“LADA”) for LADA to property rental, with Defendant Ismail Sleiman (“Sleiman”) as guarantor. Pursuant to riders and amendments, LADA agreed to pay its pro rata share of all Common Area Maintenance (“CAM”) incurred by Slauson. Starting in 2022, LADA failed to pay all sums due, including the CAM expenses, real property taxes, and insurance premiums. Slauson sued Defendants for breach of lease and breach of guarantee.

On March 20, 2026, Defendants filed the instant demurrer as
to the First Amended Complaint (“FAC”). Slauson filed an opposition. Defendants filed a reply.

II. REQUEST FOR JUDICIAL NOTICE

LADA requests that the Court take judicial
notice of the Fifth Amendment to the Lease date May 14, 2021. The Court takes judicial notice as to the existence of the document, but not as to the truth of disputed factual matters or interpretation.

III. LEGAL STANDARD

Code of Civil Procedure section 430.10 states:[1]
“The party against whom a complaint or
cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, uncertain includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it

cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

IV. DISCUSSION

Defendants request the Court sustain the demurrer as to all causes of action against Defendants as the causes of action have insufficient facts to state causes of action and are uncertain.

A. Allegations of the FAC

The FAC alleges that on September 27, 2005, parties entered into a written lease for real property located at 990 East Slauson Boulevard, Commerce, California 90040 ("property") ("original lease"). (FAC ¶ 7.) The original lease had a term of sixty-one months and required LADA to pay monthly base rent of $7,601.00. (FAC ¶ 7.) Contemporaneously, the parties executed a Rider to Lease ("rider"), which supplemented the original lease and imposed additional monetary obligations on

LADA. (FAC ¶ 8.) Under the rider, LADA agreed to pay, in addition to base rent, its 23% pro rata share of all Common Area Maintenance (“CAM”) expenses incurred for the maintenance, operation, and repair of the common areas, including parking, landscaping, lighting, utilities not separately metered, and security. (FAC ¶ 8.) The rider further required LADA to pay its proportionate share of real property taxes and insurance premiums and deductibles maintained by Plaintiff. (FAC ¶ 8.) This lease was guaranteed by Sleiman via the Guaranty of Lease (“guaranty”).

After execution of the original lease and rider, the parties entered into five written lease amendments. (FAC ¶ 9.) The FAC outlines the modifications of all amendments. (FAC ¶¶ 10-14.) The last amendment, dated May 14, 2021, confirmed LADA would pay a base rent of $9,600.00 per month through October 31, 2021, and, commencing November 1, 2021, the base rent would increase to $9,920.00 per month. (FAC ¶ 14.) As of June 1, 2021, the 23% CAM payments were to be temporarily adjusted to a flat payment of $1,000.00 per month, per COVID accommodations. (FAC ¶ 14.) LADA was also confirmed to be responsible for the 2020 reconciliation of CAM fees, but Slauson waived the accounting and reconciliation of CAM for 2018 and 2019. (FAC ¶ 14.) The waiver of any reconciliation amounts in excess of the monthly flat rate was expressly conditioned upon LADA not being in default and continuing to comply with lease obligations; breach would result in any reduced or waived amounts becoming immediately due and payable. (FAC ¶ 14.)

LADA allegedly materially breached the lease “beginning at least in calendar year 2022 and continuing thereafter,” by failing to pay all sums due, including the 23% CAM expenses and year-end reconciliations, real property taxes, and insurance premiums. (FAC ¶ 15.)

B. First Cause of Action – Breach of Contract

Defendants first argue the Court should sustain the demurrer as to the cause of action for breach of contract as the FAC does not adequately plead breach of contract. The elements of a cause of action for breach of contract are: (1) the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damages to plaintiff.” (Coles v. Glaser (2016) 2 Cal.App.5th

384, 391, internal quotations omitted.) In pleading the existence of a contractual relationship, “the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. (Code Civ.Proc., § 430.10, subd. (g).).” (Otworth v. Southern Pac. Transportation (1985) 166 Cal.App.3d 452, 458-59.)

The Court finds that the FAC inadequately pleads the legal effect of the contract. Although Slauson alleges that Defendants breached the original lease, rider, and amendments, the FAC does not plead the substance of all relevant terms necessary to determine the nature of the alleged breaches.

In particular, the FAC does not plead with specificity the amount owed by LADA for real property taxes and insurance at any point, much less at the alleged time of breach. The rate for real property taxes and insurance is identified as a “proportionate share,” but it is unclear from the text of the complaint if that is the same as the “pro rata share” for the CAM expenses (23%). (FAC ¶ 8.) The FAC also does not specify how long the $1,000.00 CAM payment was to be in effect, making it unclear from when the alleged breach for failure to pay the 23% of CAM expenses runs. (FAC ¶ 15.) The FAC makes no mention as to what lease, rider, or amendment imposed the duty of reconciliation on LADA, beyond stating the fifth amended complaint waived some reconciliations but required LADA remain responsible for the 2020 reconciliation. (FAC ¶ 14.)

Absent these terms, the Court cannot meaningfully analyze the alleged breaches or resulting damages. (See Ersa Grae Corp. v. Fluor Corp. (1991) 1 Cal.App.4th 613, 623 [a contract must be sufficiently definite for a court to ascertain the parties’ obligations and determine whether those obligations have been performed or breached]; Bowers v. Raymond J. Lucia Cos., Inc. (2012) 206 Cal.App.4th 724, 734 [contract terms must be “reasonably certain” to provide a basis for determining the existence of a breach].)

Finally, the Court notes the time and means of breach are unclear. The FAC generally alleges the breach began sometime in 2022—it is unclear when during the year this breach occurred, or regarding which missed payment. It is also unclear as to whether the allegedly overdue 23% CAM share payment and reconciliations were the first payments, resulting in default/breach, or if these payments only arose after another payment was missed, triggering default/breach. Without clear allegations as to the duties owed by Defendants or the breach, this cause of action is insufficiently pled.

The demurrer to the first cause of action is therefore SUSTAINED.

C. Second Cause of Action – Breach of Lease Guaranty

For breach of a guaranty, the liability of the principal obligor on the contract and the liability of the guarantor on the guaranty agreement are interrelated. (Torrey Pines Bank v. Hoffman (1991) 231 Cal. App. 3d 308, 326.) The Court finds it sufficient that the Complaint has alleged that Sleiman executed a guaranty in September 2005 guaranteeing all of LADA's obligations under the Lease. However, Sleiman's obligations for LADA's breach are unclear since the legal effect of LADA's breach has not been sufficiently pled, as discussed above.

The demurrer to the second cause of action is therefore SUSTAINED.

D. Leave to Amend

The burden is on a plaintiff to show in what manner it can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Slauson states it can provide further clarification, such as the specific breach at issue, and information as to the reconciliation waiver, which would cure the identified defects. As Slauson has shown it can amend the complaint to cure the pleading, the Court grants leave to amend.

V. CONCLUSION

Defendants' demurrer to the first and second causes of action of the Complaint is SUSTAINED with leave to amend.

Defendants are ordered to give notice.

DATED:
July 27, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE
TAKE NOTICE:

• Parties
are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

• If a
party intends to submit on this tentative ruling, the party must send an email to the court at with the Subject line “SUBMIT” followed by the case number. The body of the email must include the hearing date and time, counsel’s contact information, and the identity of the party submitting.

• Unless
all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

• If
the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated
statutory references are to the Code of Civil Procedure.